

22BBCV00340 22BBCV00340

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C09%2F01%2F2026

Source SHA-256: 57959d44d254b70533d500d11f8b5fb9cf3903ef75be0284d41a15feda8d7dc5

Case Number: 22BBCV00340 Hearing Date: September 1, 2026 Dept: P

[TENTATIVE] ORDER DENYING HANSEN DAM EQUESTRIAN CENTER LLC AND LARRY LANGER'S MOTIONS TO COMPEL THE DEPOSITION OF JAMES V. REISS AND MARK MCKINNISS

I. INTRODUCTION

This case arises from competing claims concerning the right to operate rodeo shows at the Hansen Dam Equestrian Center. Defendant and Cross-Complainant Hansen Dam Equestrian Center, LLC ("HDEC" or "Hansen") possesses rights from the City of Los Angeles to operate rodeo events at the facility. Plaintiff Bronco Entertainment, Inc. ("Bronco") claims a contractual right to operate rodeo shows at the Center. Similar rights are also claimed by Cross-Complainants Golden Bull Entertainment, Inc. ("Golden Bull"), Jose Hernandez ("Hernandez"), Miguel Sahagun ("Sahagun"), and Defendant and Cross-Complainant Lawrence Langer ("Langer").

On August 10, 2026, HDEC filed the instant motions to compel the depositions of Plaintiff's counsel, Mark R. McKinniss, and his paralegal and/or case manager, James V. Reiss. Plaintiff filed a consolidated opposition to both motions on August 20, 2026, and HDEC filed a consolidated reply on August 25, 2026.

II. LEGAL STANDARD

Any party may obtain any discovery of information, documents, land, property or electronically stored information so long as the discoverable matter is not privileged, is relevant to the subject matter and can lead one to admissible evidence. (Code Civ. Proc. § 2017.010.)

Code of Civil Procedure section 2025.450 permits a party who has properly noticed a deposition to move for an order compelling the deponent's attendance and testimony where the deponent fails to appear or proceed with the examination. (Code Civ. Proc., § 2025.450, subd. (a).)

III. ANALYSIS

HDEC moves the Court to compel the depositions of James V. Reiss, Plaintiff's counsel's paralegal and/or case manager, and Plaintiff's counsel, Mark R. McKinniss. HDEC also requests monetary sanctions in connection with each motion. (Reiss Motion, pp. 2-3; McKinniss Motion, p. 2.)

HDEC argues that the depositions are necessary because Reiss and McKinniss have personal knowledge of relevant, nonprivileged facts concerning a June 2, 2021, meeting at a Starbucks and McKinniss's June 3, 2021, email to Langer. As to Reiss, HDEC contends that he attended the Starbucks meeting, brought documents relating to the proposed transaction, explained those documents to the individuals present, and participated in communications with third parties. (Reiss Motion, pp. 4-5.) As to McKinniss, HDEC contends that he sent the June 3, 2021, email to Langer concerning the proposed transaction and has personal knowledge regarding that communication and related events. (McKinniss Motion, pp. 4-5.)

Plaintiff opposes both motions, arguing that the depositions seek information protected by the attorney-client privilege. Plaintiff further argues that HDEC has not satisfied the three-prong test set forth in *Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal.App.4th 1558, 1562–1563, for compelling the deposition of trial counsel or counsel's paralegal. (Opposition, p. 2.) Plaintiff also maintains that the depositions are being sought only to annoy, embarrass, oppress, or cause undue burden and expense. (*Id.* at p. 3.)

The Court agrees with Plaintiff. Depositions of opposing counsel are presumptively improper, severely restricted, and require “extremely” good cause—a high standard.” (*Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal.App.4th 1558, 1562 (*Carehouse*).) “The circumstances under which opposing counsel may be deposed are limited to those where (1) no other means exist to obtain the information than to depose opposing counsel; (2) the information sought is relevant and not privileged; (3) the information is crucial to the preparation of the case.” (*Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487, 1496; *Carehouse*, supra, 143 Cal.App.4th at 1563.) The failure of any of these three prongs means the attorney cannot be deposed. (*Carehouse*, supra, 143 Cal.App.4th at 1563.) “Attorney depositions are disruptive, and add to the length and expense of litigation. Rather than preparing the clients' case for trial, counsel must be prepared (often by retaining additional counsel) to place himself or herself in the witness box, being a responsive witness while remaining a partisan advocate. ... The parties get sidetracked into endless collateral disputes about which attorney statements are protected and which are not, and it increases the possibility that the lawyer may be called as a witness at trial.” (*Id.* at 1562-3.)

Here, HDEC has not demonstrated the “‘extremely’ good cause” required under *Carehouse*. (*Carehouse*, supra, 143 Cal.App.4th at p. 1562.) HDEC principally asserts that McKinniss and Reiss possess personal knowledge concerning the June 2, 2021, Starbucks meeting, documents relating to the proposed transaction, and McKinniss's June 3, 2021, communication to Langer. (McKinniss Motion, pp. 4, 7; Reiss Motion, pp. 4, 6-7.) Although HDEC explains why it believes this information is relevant and nonprivileged, it does not establish that no other means exist to obtain the information or that the testimony of McKinniss and Reiss is crucial to the preparation of its case.

The record reflects that other percipient witnesses were present at the June 2 meeting, namely Jose Hernandez and his wife, and HDEC acknowledges that it has already deposed Hernandez concerning the transaction and documents discussed at the meeting. HDEC does not sufficiently explain why testimony from those witnesses, or other available discovery cannot provide the factual non-privileged information it seeks. *Carehouse* requires showing that the information sought is crucial, not simply relevant or potentially useful.

Thus, HDEC has not satisfied the requirements under *Carehouse*. Therefore, the Court DENIES to compel the deposition of McKinniss and Reiss. The Court also DENIES request for monetary sanctions.

IV. CONCLUSION AND ORDER

The Court DENIES to compel the deposition of McKinniss and Reiss. The Court also DENIES request for monetary sanctions.

HDEC is to give notice.

Dated: September 1, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER DENYING BRONCO ENTERTAINMENT INC'S MOTION TO SEVER

I. INTRODUCTION

This case arises from competing claims concerning the right to operate rodeo shows at the Hansen Dam Equestrian Center. Defendant and Cross-Complainant Hansen Dam Equestrian Center, LLC ("HDEC") possesses rights from the City of Los Angeles to operate rodeo events at the facility. Plaintiff Bronco Entertainment, Inc. ("Bronco") claims a contractual right to operate rodeo shows at the Center. Similar rights are also claimed by Cross-Complainants Golden Bull Entertainment, Inc. ("Golden Bull"), Jose Hernandez ("Hernandez"), Miguel Sahagun ("Sahagun"), and Defendant and Cross-Complainant Lawrence Langer ("Langer").

On August 10, 2026, Bronco filed the instant motion to sever the cross-complaints from the main action. On August 17, 2026, HDEC and Langer filed an opposition. No reply has been filed

II. LEGAL STANDARD

Code of Civil Procedure Section 1048(b) provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc. § 1048(b).)

III. ANALYSIS

Bronco moves the Court for an order to sever the cross-complaints from the main action and proceed first with trial of its affirmative claims. Bronco argues that severance will streamline the trial by reducing the number of witnesses and exhibits and will make it easier for the jury to follow the breach of contract and conversion causes of action. Bronco further contends that the main action can be completed in five days. (Motion, p. 2.)

HDEC opposes, arguing that the Court should deny the motion because the cross-claims arise from the same underlying contractual and factual dispute concerning the parties' rights to the Hansen Dam Equestrian Center. HDEC further argues that severance would require substantially overlapping evidence to be presented in successive trials, increase litigation costs, consume additional judicial resources, and create a risk of inconsistent factual findings. (Opposition, pp. 2-3.)

The Court agrees with HDEC. The Court is not persuaded that severance would streamline the trial or otherwise promote convenience, expedition, or economy. Rather, the claims and cross-claims are intertwined and involve overlapping evidence concerning the same contractual relationship, and parties' respective rights to the Hansen Dam Equestrian Center. Severing the cross-claims would therefore risk requiring many of the same witnesses and evidence to be presented, resulting in a duplication of proof and additional expenditure of judicial resources. Thus, the Court finds that severance would not further the purposes of CCP 1048(b).

Based on the foregoing, the Court DENIES Bronco's motion to sever.

IV. CONCLUSION AND ORDER

The Court DENIES Bronco's motion to sever.

Bronco is to give notice.

Dated: September 1, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER DENYING HANSEN DAM EQUESTRIAN CENTER LLC'S MOTION FOR TERMINATING SANCTIONS AND MONETARY SANCTIONS and GRANTING IN PART AND DENYING IN PART MOTION FOR ISSUE AND EVIDENTIARY SANCTIONS

I. INTRODUCTION

This case arises from competing claims concerning the right to operate rodeo shows at the Hansen Dam Equestrian Center. Defendant and Cross-Complainant Hansen Dam Equestrian Center, LLC ("HDEC") possesses rights from the City of Los Angeles to operate rodeo events at the facility. Plaintiff Bronco Entertainment, Inc. ("Bronco") claims a contractual right to operate rodeo shows at the Center. Similar rights are also claimed by Cross-Complainants Golden Bull Entertainment, Inc. ("Golden Bull"), Jose Hernandez ("Hernandez"), Miguel Sahagun ("Sahagun"), and Defendant and Cross-Complainant Lawrence Langer ("Langer").

On August 10, 2026, HDEC filed the instant motion for terminating sanctions against Bronco and for monetary sanctions against Bronco, ICE General Builder, Inc. ("ICE"), and Vanessa De Los Santos. On the same date, HDEC also filed a motion for evidentiary and issue sanctions against Bronco.

On August 20, 2026, Bronco filed an opposition to the motion for terminating sanctions. On August 25, 2026, HDEC filed a reply.

Also on August 25, 2026, HDEC filed a notice stating that no opposition had been filed to the motion for evidentiary and issue sanctions.

II. LEGAL STANDARD

CCP § 2023.030 provides that, after notice to an affected party and after opportunity for hearing, the Court may impose sanctions against anyone engaging in conduct that is a misuse of the discovery process. (*Caldwell v. Samuels Jewelers* (1990) 222 Cal.App.3d 970, 976 [court must give fair warning and opportunity to respond, before imposing sanctions].) A misuse of the discovery process includes "disobeying a court order to provide discovery." (CCP § 2023.010(g).) Therefore, the Court can impose the following sanctions against a party who disobeys such a court order: (1) monetary sanctions; (2) issue sanctions; (3) evidence sanctions; (4) terminating sanctions; and (5) contempt sanctions.

III. ANALYSIS

Terminating sanctions

HDEC seeks terminating sanctions against Bronco on the grounds that Bronco has repeatedly misused the discovery process by: (1) failing to provide Code-compliant, full and complete responses to propounded discovery; (2) willfully disobeying the Court's May 4, 2026 order compelling Bronco to provide discovery responses and pay monetary sanctions; (3) continuing to disobey the May 4, 2026 order after the Court admonished the parties at the June 25, 2026 status conference; and (4) continuing to fail to meaningfully respond to HDEC's efforts to obtain compliance with the Court's order. HDEC argues that, considering the totality of the circumstances, Bronco's conduct warrants the ultimate sanction because Defendants have been unable to obtain the documents and information necessary to defend against Bronco's claims. (Notice, p. 2.) The moving papers further assert that, although Bronco eventually served responses and produced some documents, responsive materials remain outstanding despite the Court's prior orders.

In opposition, Bronco submits a brief opposition largely relying on the declaration of its counsel, Mark R. McKinniss. McKinniss declares that Bronco served verified, Code-compliant responses; that the ICE General Builder PMK deposition proceeded on January 15, 2026, during which documents were produced and testimony was provided concerning much of the discovery at issue; and that Bronco, ICE, and Vanessa De Los Santos subsequently provided supplemental documents, photographs, videos, and building plans, which counsel forwarded to the other parties. McKinniss further declares that, after diligent searches, Bronco has produced all documents that were available and located and is prepared to proceed to trial. Bronco also acknowledges that the monetary sanctions imposed on May 4 and May 5, 2026, remain unpaid, but represents that the sanctioned parties are gathering funds to make those payments. (McKinniss Decl., ¶¶ 1-9.)

Terminating sanctions are imposed "by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process[;] (2) An order staying further proceedings by that party until an order for discovery is obeyed[;] (3) An order dismissing the action, or any part of the action, of that party[;] (4) An order rendering a judgment by default against that party." (Code Civ. Proc., § 2023.030, subd. (d)(1)-(4).)

A terminating sanction is a "drastic measure which should be employed with caution." (Deyo, supra, 84 Cal.App.3d at p. 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, supra, 84 Cal.App.3d at p. 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.)

Here, the Court declines to impose terminating sanctions. The record reflects troubling discovery issues. However, it does not demonstrate an outright refusal by Bronco to participate in discovery. Bronco has served responses, participated in depositions, and produced responsive documents. Bronco further represents that it has conducted diligent searches and produced all responsive documents that could be located. (McKinniss Decl., ¶¶ 7, 10.) Although HDEC disputes the completeness of Bronco's responses and production, the Court is not persuaded that the record warrants the most severe discovery sanction available.

Thus, the motion for terminating sanctions is DENIED.

Monetary sanctions

HDEC also requests \$15,500 in additional monetary sanctions based on Bronco's alleged discovery abuses and failure to comply with the Court's prior discovery orders. HDEC argues extensively that Bronco's noncompliance has been willful and that additional sanctions are warranted given the time and expense incurred in attempting to obtain compliance.

The Court is not persuaded that additional monetary sanctions are warranted at this time. Although Bronco concedes that the monetary sanctions previously imposed on May 4 and May 5, 2026, have not yet been paid, counsel represents that "[a]ll of the parties that were sanctioned on May 4, 2026, and May 5, 2026, are raising/gathering the monies to pay the sanction amounts to the individual parties." (McKinniss Decl., ¶ 9.) Moreover, the Court has already imposed monetary sanctions totaling \$7,000 in connection with the underlying discovery disputes.

Thus, the request for monetary sanctions is DENIED.

Evidence and Issue Sanctions

HDEC moves for evidence and issue sanctions against Bronco. Specifically, HDEC requests an order prohibiting Bronco, its counsel, and anyone acting on Bronco's behalf from introducing any evidence of economic damages at trial and an issue sanction establishing that Bronco has not sustained any provable damages. (Notice, p. 2.)

HDEC argues that Bronco has failed to produce evidence substantiating its claimed economic damages, thereby preventing Defendants from meaningfully preparing a defense to those claims. HDEC argues that Bronco claims approximately \$1.25 million and \$2 million in damages based on alleged inability to conduct 10 to 12 events per year at the HDEC Dam facility. (Motion, p.11.)

HDEC further contends that Bronco failed to provide a properly prepared PMK concerning its damages. HDEC points to deposition testimony of Vanessa De Los Santos, that she was not prepared to testify on notice categories and was unable to identify records supporting Bronco's claimed damages.

Bronco did not file an opposition to the motion.

Issue sanctions may be imposed "ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses." (Code of Civ. Proc., § 2030.030, subd. (b).)

Evidence sanctions may be imposed "by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence." (Code of Civ. Proc., § 2030.030, subd. (c).) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo v. Killbourne (1978) 84 Cal.App.3d 771, 787.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. Id. at 788.)

The Court finds that some evidentiary relief is warranted. HDEC has demonstrated that Bronco has failed to adequately produce and substantiate the damages evidence sought through discovery and failed to adequately prepare its designated PMK to testify against the claimed damages. Bronco has filed no opposition and therefore has not presented evidence or argument explaining or justifying these deficiencies.

However, the Court declines to impose the sanctions to the full extent requested. HDEC seeks not only to preclude Bronco from introducing any evidence of economic damages, but also to establish that Bronco has sustained no provable damages.

Such relief would substantially impair, if not effectively eliminate, Bronco's ability to pursue its claims. As discussed above, the Court has declined to impose terminating sanctions, and the Court similarly finds that an issue sanction effectively deciding the issue of damages in Defendants' favor would be disproportionate to the discovery violations established by the present record.

Nevertheless, Bronco should not be permitted to introduce at trial damages evidence that was responsive to Defendants' discovery requests but was not disclosed or produced during discovery. Thus, the motion is GRANTED in part to the extent Bronco is precluded from introducing documents, financial records, damages calculations, or other responsive damages evidence that was required to be produced in discovery but was not timely produced. The motion is DENIED to the extent that HDEC seeks to preclude all evidence of economic damages or an issue sanction establishing that Bronco sustained no provable damages.

IV. CONCLUSION AND ORDER

The Court DENIES HDEC's motion for terminating sanctions and further monetary sanctions. The Court GRANTS in part and DENIES in part motion for evidence and issue sanctions.

HDEC is to give notice.

Dated: September 1, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER DENYING CROSS-COMPLAINANT JOSE HERNANDEZ'S MOTION TO COMPEL FURTHER PRODUCTION OF DOCUMENTS

I. INTRODUCTION

This case arises from competing claims concerning the right to operate rodeo shows at the Hansen Dam Equestrian Center. Defendant and Cross-Complainant Hansen Dam Equestrian Center, LLC ("HDEC" or "Hansen") possesses rights from the City of Los Angeles to operate rodeo events at the facility. Plaintiff Bronco Entertainment, Inc. ("Bronco") claims a contractual right to operate rodeo shows at the Center. Similar rights are also claimed by Cross-Complainants Golden Bull Entertainment, Inc. ("Golden Bull"), Jose Hernandez ("Hernandez"), Miguel Sahagun ("Sahagun"), and Defendant and Cross-Complainant Lawrence Langer ("Langer").

On August 10, 2026, Cross-Complainant Hernandez filed the instant renewed motion to compel production of documents. On August 17, 2026, HDEC filed an opposition. No reply has been filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147

Cal.App.3d 681, 685).) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (Sexton, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

Hernandez moves for an order compelling Hansen Dam Equestrian Center, LLC, to respond without objection to Hernandez's first set of requests for production of documents and to produce all responsive documents being withheld from production. Hernandez maintains that he propounded the requests for production on September 25, 2025. The renewed motion concerns only Request Nos. 10, 11, 12, 13, 14, and 17, which seek documents concerning LaNoria. (Motion, p. 5.) Hernandez argues that HDEC failed to timely respond and therefore waived its objections under Code of Civil Procedure section 2031.300. Hernandez further contends that, notwithstanding waiver, the requested LaNoria documents are directly relevant to the issues in this action (Motion, p. 6.)

In opposition, HDEC contends that it has responded to the discovery and produced responsive LaNoria documents. HDEC further argues that Hernandez has not identified any particular document or category of documents that remains outstanding or explained why HDEC's production is deficient. (Opposition, pp. 8-10.) HDEC represents that, on three separate occasions, it produced documents responsive to the six requests at issue. (Angioni Decl., ¶¶ 2-4, Exhs. A-C.)

More importantly, HDEC represents that it has now served supplemental verified responses to the six requests at issue confirming that it has produced all responsive documents within its possession, custody, or control. (Angioni Decl., ¶ 5, Exh. D.) Hernandez has filed no reply disputing this representation or identifying any responsive document or category of documents that remains outstanding.

The Court therefore finds the requested relief moot. Although Hernandez contends HDEC waived its objections by failing to timely respond, the Court need not resolve the waiver issue because HDEC has now produced responsive documents and served verified supplemental responses confirming that its production is complete. Moreover, Hernandez has not filed a separate statement identifying any particular response or objection requiring further adjudication, nor has he identified any particular responsive document that HDEC continues to withhold. Under these circumstances, there is no further production for the Court to compel.

Thus, Hernandez motion to compel is DENIED.

IV. CONCLUSION AND ORDER

The Court DENIES Hernandez's motion to compel further.

Hernandez is to give notice.

Dated: September 1, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT